

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 05/28/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10
Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1.	9:00 AM	CASE NUMBER:	MSC20-02134
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CASE NAME:	TERESA NEENO VS. BARRY HACK
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*FURTHER CASE MANAGEMENT CONFERENCE
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FILED BY:

<u>*TENTATIVE RULING:*</u>

If the tentative rulings go uncontested, further Case Management Conference is set for July 23, 2026, 9:00 a.m. to trail the future hearing in this matter. If either Party challenges the tentative rulings on Line 17 and 18, a Case Management Conference will be held.
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2.	9:00 AM	CASE NUMBER:	MSC22-00088
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CASE NAME:	KALAMAS VS. JOHN MUIR HEALTH
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*HEARING ON MOTION IN RE: RECALCULATION OF COSTS - CONTROL DATE
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FILED BY:

TENTATIVE RULING:

The Court issued its final order on the Motion to Tax Costs. No appearance is required and this date is vacated.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-01689
CASE NAME: BRIAN SWEET VS. EVENT CORPORATION
***HEARING ON MOTION IN RE: ORDER APPROVING SETTLEMENT**
FILED BY: SWEET, BRIAN
TENTATIVE RULING:

Brian Sweet moves for approval of the settlement of his PAGA suit against defendant Event Corporation.

A. Background of the Case and Terms of Settlement

This a PAGA case, alleging a variety of violations of the Labor Code concerning failure to provide rest and meal breaks, failure to pay for off-the-clock work, failure to reimburse business expenses and cascading derivative violations. Plaintiff has given notice to the LWDA. The complaint was filed June 12, 2023. There is no class action, only a PAGA claim.

The total settlement payment is \$100,000. This is composed of attorney's fees of \$33,333.33, litigation costs of \$11,935.88, and \$3,450 in costs to the settlement administrator (ILYM Group). The remaining amount would be a PAGA penalty of \$51,280.79, which would be apportioned 75% to the LWDA and 25% to the aggrieved employees, i.e., \$38,547.51 to the LWDA and \$12,849.17 to the aggrieved employees. There is no enhancement payment for Mr. Sweet.

The settlement indicates that there are an estimated 130 aggrieved employees and 3,510 pay periods at issue. The payments from the employee share of the penalty will be distributed among the employees based on the number of pay periods each individual worked during the PAGA period.

Plaintiff's counsel attests that they engaged in extensive arms-length settlement negotiations. Informal discovery was undertaken. Counsel's declarations provide a general discussion of the strengths and weaknesses of the case. They estimate the maximum potential recovery at \$351,250, and explain why the settlement is justified.

Plaintiff provided required notices to the LWDA of the initial claims and of the proposed settlement.

The settlement provides a process for mailing the notices to the aggrieved employees, who will not have to submit a claim, along with a process for following up on returned mail. Because this is a PAGA settlement, not a class action, there is no opportunity to object or opt out.

The settlement provides that the value of checks uncashed after 180 days will be turned over to the State Controller's Office Unclaimed Property Division in the names of the aggrieved employees.